
MANGAYON SHOT DEAD: R.A. NO. 9147 AND WILDLIFE JUSTICE

JOHN FROEYX B. SARARAÑA
College of Law, West Visayas State University

The Philippines is one of 18 mega-biodiverse countries of the world, containing two-thirds of the earth's biodiversity and between 70% and 80% of the world's plant and animal species.¹ With five percent of the world's plant species, the Philippines is home to a fifth of all plant species. The nation ranks fourth in the world for bird endemism, but its species endemism is quite high, encompassing at least 25 genera of plants and 49% of terrestrial fauna.²

With at least 700 vulnerable species, the Philippines is among the top worldwide conservation regions and one of the world's biodiversity hotspots. 42 species of land mammals, 127 species of birds, 24 species of reptiles, and 14 species of amphibians are included in the national list of vulnerable faunal species, which was created in 2004.³

In terms of marine life, there are at least 3,214 species of fish in the Philippines, with roughly 121 being endemic and 76 being threatened. A nationwide list of threatened plant species was established in 2007 by an administrative order from the Department of Environment and Natural Resources. This list included 64 additional threatened species, 187 endangered species, 99 severely endangered species, and 176 vulnerable species.⁴ Considering these data, it is arguably that the Philippines is a God-gifted country not only by culture but by nature.

However, despite these God-given gifts, man tends to stand by its nature of being abusive. Recently, a Philippine eagle was struck down from the heights. The Philippine Eagle Foundation (PEF) reported that on the afternoon of July 8, 2024, PEF received a report from the DENR-PENRO Davao de Oro about an injured Philippine Eagle. The eagle was under the custody of the Philippine Army patrol base in Barangay Mangayon, Compostela. According to Sgt. Badon, the patrol led by 2nd Lt. Cabajar discovered the weakened eagle with an apparent left-wing injury on the ground in Bermuda, a part of Barangay Mangayon.⁵ The eagle was named "Mangayon."

¹ Convention on Biological Diversity. (n.d.), <https://www.cbd.int/countries/profile?country=ph>

² *Id.*

³ *Id.*

⁴ *Id.*

⁵ Philippine Eagle Foundation, Another Philippine Eagle killed in Mangayon, Compostela Valley, Davao de Oro (2024),

Mangayon underwent physical and medical examinations, revealing several injuries, including shattered bones in the left tarsal joints. The attending veterinarian, Dr. Bayani Vandenbroeck, discovered an entry wound in the left tarsal area of the eagle's wing, which exited through the opposite side and extended to the left keel area of Mangayon's wing.⁶

The procedure also revealed that Mangayon began discharging foul fluids and solid materials from his mouth, which were identified as an undigested half-cooked chick. The primary cause of death was severe blood loss from the wounds in the left wing, with a high probability of sepsis stemming from the injuries.⁷ Clearly, the bird was intentionally shot as a product of poaching. As per reports, the identity of the suspect is still unknown.

Mangayon is the fourth rescued eagle in 2024 to have fallen victim to deliberate shooting apparent in their gunshot wounds. Apart from this, there are other cases of deliberate shootings of these endangered species. The number of the shootings may indicate of the lax implementation of environmental laws in the Philippines.

Wildlife Resources Conservation and Protection Act (R.A. No. 9147)

The Wildlife Resources Conservation and Protection Act of 2001, also commonly known as R.A. No. 9147, provides for the conservation, preservation and protection of wildlife species and their habitats, in order to preserve and encourage ecological balance and biological diversity.⁸ It provides, furthermore, for the control and supervision of wildlife capture, hunting and trade; finally, it provides for supporting and promote scientific research on the protection of biodiversity.⁹

Some of the key provisions of R.A. No. 9147 include the (1) Regulation of Wildlife Trade, to control the trade of wildlife species, both domestically and internationally, in preventing illegal trafficking and over-exploitation of animal species; (2) Protection of Habitat, to designate critical habitats and areas which are to be protected in ensuring the survival of wildlife species in their natural environments; (3) Education and research, the act encourages scientific research on

<https://www.philippineeaglefoundation.org/post/philippine-eagle-rescued-in-mangayon-compostela-valley-davao-de-oro-declared-dead>

⁶ Patumbon, Rojean Grace G., Another PH eagle dies of gunshot wounds (July 14, 2024), [https://www.sunstar.com.ph/davao/another-ph-eagle-dies-of-gunshot-wounds#:~:text=THE%20Philippine%20Eagle%20Foundation%20\(PEF,%2C%20on%20July%208%2C%202024](https://www.sunstar.com.ph/davao/another-ph-eagle-dies-of-gunshot-wounds#:~:text=THE%20Philippine%20Eagle%20Foundation%20(PEF,%2C%20on%20July%208%2C%202024)

⁷ *Id.*

⁸ Wildlife Resources Conservation and Protection Act, Rep. Act No. 9147 (July 30, 2001) (Phil.), <https://www.officialgazette.gov.ph/2001/07/30/republic-act-no-9417/>

⁹ *Id.*

wildlife, promote public awareness and education about wildlife conservation; and (4). the Penalties for the violations and the violators of the act.

Research Studies on Implementation of R.A. No. 9147

Implementation of R.A. No. 9147 Among the Coastal Communities of the Municipality of Manay, Davao Oriental

The research was conducted on the Office of the MENRO in the Municipality of Manay. The researcher did additional research and focus group discussion on the different activities being made by the agency for the implementation of the law specifically Article 3 Sec. 27 of the R.A. No. 9147 along the coastal community namely; Central, San Ignacio, Holy Cross, and Zaragoza all in the Municipality of Manay, Davao Oriental.¹⁰

The summary of the findings shows important problems that need to be addressed in implementing R.A. No. 9147. Specifically, it showed that:

- 1) There are limited activities such as advocacies in the implementation of R.A. No. 9147.¹¹ The result was that the Information Education Campaign (IEC) was not enough as it was done only on a quarterly basis. The researcher asserts that the community's awareness of such laws can contribute to the conservation and protection of marine wildlife;
- 2) There are low-observation checkpoints that are done in the municipality which, according to the researcher, “can be very alarming and that violators can escape the municipality discreetly with the wildlife with them.”¹²
- 3) There are less attendees in the IEC programs. As per the study, there were 63 or 74.12% said that they have attended the IEC done especially on the threatened species.¹³

Implementation of R.A. No. 9147 “Wildlife Resources Conservation and Protection Act

The research was to evaluate the implementation of the R.A. No. 9147 “Wildlife Resources Conservation Act” in the jurisdiction of DENR-CENRO

¹⁰ Belena, Jan Michael L., The Implementation of RA 9147 Among the Coastal Communities of The Municipality of Manay (n.d.), <https://ejournals.ph/article.php?Id=15473>

¹¹ *Id.*

¹² *Id.*

¹³ *Id.*

Guiguinto, Bulacan. The study shows issues hindering R.A. No. 9147 its effective implementation. According to the study, these are education, engineering, and enforcement.¹⁴

Education

“The lack of information materials regarding R.A. No. 9147 such as what are the ban species for trading and what are the prohibited acts is a significant information gap... The primary goal of IEC materials is to inspire and to educate people about the importance of the conservation and protection of wildlife and for better understanding of what the law prohibits in a more comprehensive way.”¹⁵

Engineering

“...the lack of wildlife rescue centers, and lack of wildlife traffic monitoring units. At present, only the airports of Davao, Zamboanga, Manila, Cebu and Subic have monitoring units, while only the port of Manila has a monitoring unit. For this reason, the law cannot be fully implemented because rescue centers and monitoring units are essential to perform the process of achieving the objectives of the law.”¹⁶

Enforcement

“When it comes to the aspect of enforcing the law, there are significant gaps that we need to look upon. One is the lack of resources for wildlife protection... Another is the absence or lack of institutional arrangements with other countries to combat entry and exit of wildlife and / or exotic wildlife species... the lack of checkpoints and monitoring units at airports and ports hinders the effective implementation of the law.”¹⁷

Challenges and Opportunities in Philippine Wildlife Conservation

Despite the efforts of the government in implementing R.A. No. 9147, the studies, and the recent incidents prove that these efforts are not enough. The full implementation of the law still remains to be challenged. Indeed, public awareness campaigns and Community-Based Conservation Programs have been launched to raise public awareness about the importance of wildlife conservation. However, they

¹⁴ Cruz, Angelique G., Implementation of Republic Act 9147 “Wildlife Resources Conservation and Protection Act. (n.d.), <https://www.studocu.com/ph/document/san-beda-university/natural-resources-and-environmental-laws/implementation-of-republic-act-9147-wild/71046612>

¹⁵ *Id.*

¹⁶ *Id.*

¹⁷ *Id.*

are proven to be insufficient. The Philippines lacks the resources for the full implementation of conservation programs and funds for the enforcing agencies.

Nevertheless, there are still rooms for improvements. The Philippine government may opt to (1) strengthen institutional capacity, that is, to enhance the capabilities of institutions responsible for wildlife conservation such as the Department of Environment and Natural Resources (DENR); (2) engage local communities, that is by promoting community-based conservation initiatives; (3) leveraging technology, that is by utilizing technology such as the internet for monitoring, enforcement, and public awareness campaigns; and (3) enhance international collaboration, engage with global partners for technical and financial support.

Likewise, according to Environment Secretary Roy A. Cimatu, a more stringent law is needed to curb illegal wildlife trade as culprits are not deterred by the punishments provided under R.A. No. 9147 or the Wildlife Resources Conservation and Protection Act of 2001.¹⁸ This calls for a strict implementation of the penalties as provided by the republic act.

The survival of human societies and the health of our planet depend on the preservation of wildlife. Every species in our intricately interrelated natural environment contributes to the preservation of equilibrium. By preserving wildlife, we help ecosystems continue to function efficiently and continue to supply us with necessities like clean water, air, and fertile soil. The extinction of a single species can have a cascading effect on ecosystem resilience by upsetting food systems. In addition to preserving plants and animals, wildlife conservation ensures a stable ecosystem for present and future generations. Additionally, there are significant cultural, aesthetic, and financial benefits to wildlife preservation. Numerous groups, particularly those of indigenous descent, have long-standing relationships to the local fauna and natural environments. Their cultural identities and customs are shaped by these interactions. Furthermore, wildlife tourism contributes significantly to the economy by creating jobs and advancing sustainable development. The wonder and diversity of animals arouse admiration and respect for the natural world, which strengthens one's sense of duty to preserve it.

It is essential to protect species and their habitats in the fight against climate change. As carbon sinks, healthy ecosystems contribute to reducing global warming. Protecting these habitats and stopping actions like illegal trading and deforestation that worsen climate change require laws like the Wildlife Resources Conservation and Protection Act (R.A. No. 9147). Our dedication to a sustainable future in which people and the natural world coexist peacefully is reflected in our efforts to safeguard

¹⁸ DENR, Cimatu: Stricter law needed to curb illegal wildlife trade (July 19, 2020), <https://denr.gov.ph/news-events/cimatu-stricter-law-needed-to-curb-illegal-wildlife-trade/>

wildlife. We make an investment in a resilient, thriving planet for all living things when we value and conserve wildlife.

Bibliography

Statutes

Wildlife Resources Conservation and Protection Act, Rep. Act No . 9147 (Jul. 30, 2001) (Phil.),
<https://www.officialgazette.gov.ph/2001/07/30/republic-act-no-9417/>

Online Sources

Belena, Jan Michael L., The Implementation of RA 9147 Among the Coastal Communities of The Municipality of Manay (n.d.),
<https://ejournals.ph/article.php?id=15473>

Convention on Biological Diversity (n.d.),
<https://www.cbd.int/countries/profile?country=ph>

Cruz, Angelique G., Implementation of Republic Act 9147 “Wildlife Resources Conservation And Protection Act (n.d.),
<https://www.studocu.com/ph/document/san-beda-university/natural-resources-and-environmental-laws/implementation-of-republic-act-9147-wild/71046612>

DENR Cimat: Stricter law needed to curb illegal wildlife trade. (July 19, 2020),
<https://denr.gov.ph/news-events/cimatu-stricter-law-needed-to-curb-illegal-wildlife-trade/>

Patumbon, Rojean Grace G. Another PH eagle dies of gunshot wounds. (July 14, 2024),
[https://www.sunstar.com.ph/davao/another-ph-eagle-dies-of-gunshot-wounds#:~:text=THE%20Philippine%20Eagle%20Foundation%20\(PEF,%2C%20on%20July%208%2C%202024](https://www.sunstar.com.ph/davao/another-ph-eagle-dies-of-gunshot-wounds#:~:text=THE%20Philippine%20Eagle%20Foundation%20(PEF,%2C%20on%20July%208%2C%202024)

Philippine Eagle Foundation. (2024),
<https://www.philippineeaglefoundation.org/post/philippine-eagle-rescued-in-mangayon-compostela-valley-davao-de-oro-declared-dead>